

25CHCV02194 25CHCV02194

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-09-17

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Case Number: 25CHCV02194 Hearing Date: September 17, 2026 Dept: F43

Dept. F43

Hearing Date: 09-17-26

Case # 25CHCV02194, Tahmasian v.

Costco Wholesale Membership, Inc., et al.

Trial Date: 10-30-28

MOTION TO COMPEL

FURTHER RESPONSES TO FORM INTERROGATORIES

MOVING PARTY:

Plaintiff Arlet Tahmasian

RESPONDING PARTY: Defendant Costco Wholesale Corporation, Inc.

RELIEF REQUESTED

Order compelling defendant Costco to serve further verified responses to plaintiff second set of form interrogatories numbers 16.3-16.6 and 17.1 and imposing \$1,460 in monetary sanctions against defendant and its counsel, jointly and severally.

RULING: Motion is continued. The parties are ordered to meet and confer in person, by telephone, or by video conference and to file a joint status report by a date to be set by the court.

SUMMARY OF ACTION

On June 23, 2025, plaintiff Arlet Tahmasian (Plaintiff) filed this personal injury action against defendants Costco Wholesale Membership, Inc. (Costco), Trey Spivey, and Josh Trainor, asserting negligence and premises liability causes of action. Defendant Spivey was dismissed on October 1, 2025. Plaintiff alleges that on April 1, 2024, she was a customer at defendant Costco's retail store in Pacoima, CA when she slipped and fell on a slippery substance on the floor and sustained bodily injuries. According to Plaintiff, defendants' employees negligently maintained the store and caused her to incur medical and related expenses and suffer property damages and loss of earnings. Costco filed an answer on July 30, 2025.

On April 17, 2026, Plaintiff electronically served Costco with her second set of form interrogatories. (Declaration of Arthur Mouradyan ¶ 3, Exh 1.) Costco served responses to the form interrogatories and Plaintiff's second set of request for admissions. (Id. ¶ 4, Exhs. 2, 3.) Plaintiff's counsel sent defense counsel a "meet and confer" letter on June 5, 2026, requesting further responses to several form interrogatories. (Id. ¶ 6, Exh. 4.) Defense counsel responded on June 23, 2026, and served further verified responses on July 23, 2026. (Id. ¶¶ 7-8, Exhs. 5, 6.) No further responses have been served. (Id. ¶ 9.)

On August 13, 2026, Plaintiff filed the instant motion to compel defendant Costco's further verified responses to her second set of form interrogatory numbers 16.3, 16.4, 16.5, 16.6, and 17.1. Costco filed an opposition on September 3, 2026, seeking sanctions and presenting a copy of unverified further responses that were served on September 3, 2026. Plaintiff replied on September 10, 2026.

ANALYSIS and MEET AND CONFER

A motion to compel further responses to form interrogatories must include a declaration stating facts showing a "reasonable and good faith attempt" to resolve the issues mentioned in the motion before filing. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).) Section 2016.040 requires the meet and confer to occur by "in person, by telephone, or by videoconference." (Code Civ. Proc., § 2016.040, subd. (a).) In Department F43,

meet and confer means in person or via phone, not by letter or email. (Department F43 Courtroom Information, p. 2.)

The court has reviewed the moving papers and finds the parties have failed to adequately meet and confer according to Section 2016.040 and this court's Information Bulletin. At most, counsel exchanged two letters, with defense counsel stating its willingness to meet and confer by telephone. (Mouradyan Decl., Exh. 5 at p. 5 [defense counsel's June 23, 2026, letter].)

However, Plaintiff presents no facts indicating an attempt to contact or meet with defense counsel by phone, videoconference, or in person. Furthermore, Plaintiff does not indicate any meet and confer attempts after Costco served its supplemental responses on July 23, 2026.

Therefore, the court continues the motion and orders the parties to meet and confer in person, by phone, or by video conference and to file a joint statement of remaining issues by a date to be set by the court. The joint statement should briefly describe the matters in dispute, followed by Plaintiff's arguments, then defendant Costco's arguments.

CONCLUSION and ORDER

1. The parties are ordered to conduct a meaningful meet and confer in person, by telephone, or by video conference.

2. The parties shall file a joint statement of the remaining issues as described above. The format should be as follows:

The parties should recite the specific discovery requests at issue, followed by the moving party's statement of why it should be compelled, followed by the opposing party's statement of why it should not be compelled. To the extent that an argument is repeated for a subsequent request, the party shall simply refer to the section where the argument was previously made.

3. The deadline for the joint statement will be set at the hearing on this motion.

Plaintiff to give notice.